

The Jaggery Grading and Marking Rules, 2008

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Union of India - Act

The Jaggery Grading and Marking Rules, 2008

UNION OF INDIA

India

The Jaggery Grading and Marking Rules, 2008

Rule THE-JAGGERY-GRADING-AND-MARKING-RULES-2008 of 2008

Published on 14 November 2008

Commenced on 14 November 2008

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The Jaggery Grading and Marking Rules, 2008

Published vide Notification No. G.S.R. 810(E), 14th November, 2008

Ministry of Agriculture

(Department of Agriculture and Co-operation)

G.S.R. 810(E). - Whereas the draft of Jaggery Grading and Marking Rules, 2008, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937) was published vide notification G.S.R. 35 dated 21st February, 2008, in the Gazette of India, Part II, Section 3, sub-section (i) inviting objections and suggestions from all persons likely to be affected thereby within forty five days from the date on which copies of the said notification published in the Gazette of India were made available to the public.

And whereas copies of the said notification were made available to the public on 25th April, 2008 and whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered.

Now, therefore, in exercise of the powers conferred by section 3 of the Agricultural Produce (Grading and Marking) Act, 1937, and in supersession of Sugarcane Gur (Jaggery) Grading and Marking Rules, 1943, the Central Government hereby makes the following rules, namely:-

Rules

1.

Short title, application and commencement.

(1)

These rules may be called the Jaggery Grading and Marking Rules, 2008.

(2)

They shall apply to Jaggery obtained from Sugarcane, Palmyra palm, Date palm or Coconut palm.

(3)

They shall come into force on the date of their final publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires -

a) "Agricultural Marketing Adviser" means the Agricultural Marketing Adviser to the Government of India;

b) "Authorized packer" means a person or body of persons who has been granted the certificate of authorization to grade and mark Jaggery in accordance with the grade standards and procedure prescribed under the rules;

c) "Certificate of Authorization" means a certificate issued under the provisions of General Grading and Marking Rules, 1988 authorizing a person or a body of persons to grade and mark Jaggery with the grade designation mark;

d) "General Grading and Marking Rules" means the General Grading and Marking Rules, 1988 made under section 3 of the Agricultural Produce (Grading and Marking) Act, 1937 (1 of 1937);

e) "Schedule" means a Schedule appended to these rules.

3.

Grade designation.

- The grade designation to indicate the quality of the Jaggery shall be as set out in column 1 of Schedule II.

4.

Quality.

- The quality indicated by the respective grade designations shall be as mentioned in Schedule II.

5.

Grade designation mark.

- The grade designation mark shall consist of "Agmark Insignia" consisting of the design incorporating the certificate of authorization number, the word "Agmark" name of the commodity and grade designation resembling the one as set out in Schedule I.

6.

Method of marking.

(1)

The grade designation mark shall be securely affixed to or clearly and indelibly printed on each container in a manner approved by the Agricultural Marketing Adviser;

(2)

In addition to the grade designation mark, the following particulars shall be clearly and indelibly marked on each container -

(a)

name and address of the packer;

(b)

place of packing/Manufacturing;

(c)

date of packing;*

(d)

Best Before Months and Year

(e)

lot/batch number/Code No;

(f)

any other local name denoting the form, if any;

(g)

texture (optional);

(h)

grade;

(i)

net weight

(j)

maximum retail price (inclusive of all taxes);

(k)

any other particular as may be specified by the Agricultural Marketing Adviser or Prevention of Food Adulteration Rules, 1955.

*The date of packing shall be the date of completion of the analysis of the sample.

(3)

In case of hard Jaggery containing less than 4 percent moisture and having a Sucrose content not below 80 percent by weight the word "Hard" may be stamped on the label.

(4)

The ink used for marking on packages shall be of such quality which may not contaminate the product.

(5)

The authorized packer may, after obtaining prior approval of the Agricultural Marketing Adviser or an officer authorized by him in this behalf, mark his private trade mark or trade brand on the graded packages provided that the same does not indicate quality other than that indicated by the grade designation mark affixed to the container in accordance with these rules.

7.

Method of packing.

(1)

Jaggery shall be packed only in sound, clean and dry containers made of jute with or without suitable inner lining of food grade material, tin containers laminated polyethylene or poly propylene or high density polyethylene bags, pouches if required, or any other food grade material, duly approved by the Agricultural Marketing Adviser or any other authorized by him in this behalf.

(2)

The container shall be free from any insect infestation or fungus contamination and also free from any undersirable or obnoxious smell.

(3)

The container shall be securely closed and sealed in a manner approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf.

(4)

Each package shall contain Jaggery of one grade designation only. Suitable number or small packets of Jaggery containing graded material of the same lot or batch and grade designation may be packed in a master container such as jute bags, palm mats, bamboo boxes or mats, cardboard cartons, etc, with details on master containers.

(5)

The Jaggery shall be packed in the pack sizes as per instructions of Agricultural Marketing Adviser issued from time to time.

(6)

Jaggery of granular texture shall be packed separately from Jaggery with smooth texture.

8.

Special conditions for grant of certificate of authorization.

(1)

In addition to the conditions specified in sub-rule (8) of rule 3 of the General Grading and Marking Rules, 1988, every

authorized packer shall follow all instructions prescribed by Agricultural marketing Adviser from time to time.

(2)

The authorized packer either set up his own laboratory or have access to State Grading Laboratories or Private Commercial Laboratories manned by a qualified chemist approved by the Agricultural Marketing Adviser or an officer authorized by him in this behalf in accordance with rule 9 of the General Grading and Marking Rules, 1988 for testing the quality of Jaggery.

(3)

The premises for processing, grading and packing shall be maintained in perfect hygienic and sanitary conditions and should be fly proof. The personnel engaged in these operations shall be in sound health and free from any infection contagious or communicable diseases.

(4)

The premises shall have adequate storage facilities with pucca floor, ventilation and free from rodent and insect infestation.

I

[See rule-5]

Design of the Agmark Insignia

Name of the Commodity

Grade.....

II

(see rules 3 and 4)

Grade designation and quality of Jaggery

1. Jaggery or Gur means the product obtained by boiling or processing juice pressed out of Sugarcane (*Saccharum Officinarum*) or extracted from Palmyra palm (*Borassus akeassii* of family Arecaceae), Date palm (*Phoenix dactylifera*) or Coconut palm (*Cocos nucifera* of family Arecaceae)-

2. Minimum requirements:-

(i)

Jaggery shall be :-

(a)

well dried, of firm consistency - not sticky or plastic;

(b)

having characteristic taste and flavour,

(c)

clean and free from insect infestations, live insect, dead insects, insect fragments, mould or mites, larvae, rodent hair and excreta;

(d)

free from fermented and musty odour,

(e)

free from dirt or soil;

(f)

free from natural or synthetic colours, artificial sweetening agents;

(g)

free from any fungal or bacterial contamination;

(h)

free from deleterious substances injurious to health;

(i)

free from bleaching agents;

(j)

free from added starch;

(ii)

Jaggery shall comply with the residual level of Poisonous Metals (rule 57), crop contaminants (rule 57-A), naturally occurring toxic substances (rule 57-B), Insecticides and Pesticides residues (rule 65) and other food safety requirements

as laid down under the provisions of Prevention of Food Adulteration Rules, 1955 for domestic purposes.

(iii)

Jaggery shall comply with the residual levels of heavy metals, pesticides residue and any other food safety requirements as prescribed under Codex Alimentarius Commission or importing countries requirement for export purposes.

(iv)

Jaggery shall be sweet to the taste and free from any objectionable flavour.

3. Criteria for grade designation:

Grade designation

Specific Characteristics

Moisture, per cent by mass

Total Sugar, expressed as Invert Sugar, per cent by mass on dry weight basis

Sucrose per cent by mass (on dry weight basis)

Total Ash, per cent by mass (on dry weight basis)

Acid Insoluble Ash. per cent by mass (on dry weight basis)

Extraneous Matter, insoluble in water, per cent by mass (on dry weight basis)

Sulphur dioxide content in parts per million

Maximum

Minimum

Minimum

Maximum

Maximum

Maximum

Maximum

1

2

3

4

5

6

7

8

Special

5.0

94.0

80.0

1.0

0.10

0.3

60.0

Standard

7.0

92.0

70.0

2.5

0.20

1.0

70.0

General

10.0

90.0
65.0
4.0
0.50
2.0
70.0

4. Other requirements:

(i)

The condition of the Jaggery shall be as to enable it,-

- to withstand transport and handling; and
- to arrive in satisfactory condition at the place of destination.

(ii)

Special grade shall be made by adequately clarified juice by means of vegetable activated carbon in addition to the common methods of clarification.

(iii)

The interior of containers used for packing Jaggery of 'Special' grade may be lined with clean plain packing paper,

(iv)

The form of the Jaggery shall be marked on the packages such as -

- Lumps or
- Bheli or
- Chaku or
- Luddoo or
- Balti or
- Solid Cake or
- Cubes and bricks or
- any other form

(v)

The texture of Jaggery may be marked on the package.

5. Provisions for Broken:

For any consignment, 3 per cent and 5per cent by weight of Jaggery may be allowed as broken for Standard and General grades respectively for accidental errors.

6. Provisions Concerning Colour :- (i) Jaggery may be of below mentioned colours:

- light golden;
- golden;
- dark golden;
- light brown;
- brown;

(ii)

The Jaggery for Special grade may be of light golden colour.

(iii)

For each grade, the colour of Jaggery packed may be marked on the packet.

(iv)

For each grade a tolerance of 5per cent by weight is allowed for colour difference.

Explanations :-

(i)

Well dried:- means the material dried to such an extent as reasonably having due regard to climatic factors and conditions under which the produce may have been handled, transported or stored to maintain its colour, consistency and weight.

(ii)

Common method of Clarification:- The process of clarification may be effected by means of any of these agents normally employed for the purpose including mucilaginous extract of Sukhlai (Kydia Calycina), Deola (Hibiscus, Ficulneous),

Bhindi (*Hibiscus esculentus*) etc. or sodium bicarbonate of food grade etc. or by adequately removing the scum during the boiling process. Bleaching Agents shall not be used.

(iii)

Extraneous matter: - means any foreign matter consisting of bagasse, dirt, straws, edible grains, clay and sand.

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